

Public Service Commissions

- 1.** Constitution provides a Public Service Commission for the Union, a Public Service Commission for each State or a Joint Public Service Commission for a group of States.
- 2.** A Joint Public Service Commission can be created by Parliament in pursuance of a resolution passed by the State Legislatures concerned.
- 3.** The Union Public Service Commission can serve the needs of a State, if so requested by the Governor of that State and approved by the President {Ref.: Art. 315}.
- 4.** The appointment, determination of number of members of the Commission and their conditions of service is done by : The President in the case of the Union or a Joint Commission, and The Governor of the State in the case of a State Commission.
- 5.** Conditions of service of a member of the Public Service Commission can not be varied to his disadvantage after his appointment [Art. 318].
- 6.** Half of the members of a Commission should be persons who have held office under the Government of India or of a State for at least 10 years {Art. 316}.
- 7.** The term of service of a member of a Commission is 6 years from the date of his entering upon office, or until the age of retirement, which ever is earlier.
- 8.** Age of retirement for a member of UPSC is 65 years.
- 9.** Age of retirement for a member of PSC of a State or a Joint Commission is 62 years.
- 10.** Services of a member of a Public Service Commission can be terminated by : Resignation in writing addressed to the President (to the Governor in the case of a State Commission). Removal by the President.
- 11.** President can remove a member if he is : adjudged insolvent; or engages himself in paid employment outside the duties of his office; or is infirm in mind or body; or found guilty of misbehaviour by the Supreme Court.
- 12.** Even in the case of a State Commission, only the President can remove a member, while Governor has only the power to pass an interim order of suspension.
- 13.** The expenses of the Commission are charged on the Consolidated Fund of India or of the State (as the case may be) {Ref.: Art. 322}.

14. Disabilities imposed upon the Chairman and members of the Commission for future employment under the Government are : The Chairman of the UPSC is ineligible for further employment either under the Government of India or under the Government of a State. The Chairman of a State Public Service Commission is eligible for appointment as the Chairman or member of the Union Public Service Commission or as the Chairman of any other State Public Service Commission, but not for any other employment either under the Government of India Or under the Government of a State.

15. A member of a State Public Service Commission is eligible for appointment as the Chairman of a State Public Service Commission and Chairman or member of UPSC, but not for any other employment either under the Government of India or under the Government of a State.

16. The Public Service Commissions are advisory bodies. Government can accept its recommendation or depart from it.

17. Functions of Public Service Commission : To conduct examination for appointments to the services of the Union and States. To advise on any matter so referred to them and on any other matter which the President or the Governor of a state may refer to the appropriate Commission [Art. 320] To exercise such additional functions as may be provided for by an act of Parliament or of the Legislature of a State.